

HEADNOTE

“1. One situation where added matter may arise is when claimed subject-matter is obtained by importing one or more features from a certain embodiment in the application into a claim, while omitting one or more other features of this embodiment which were presented in combination with the imported feature(s) in the disclosure of this embodiment. This is referred to as an 'intermediate generalisation'. This is generally considered to be unallowable if there is a clearly recognisable functional or structural relationship among the omitted feature(s) and the claim features, also referred to 'an extricable link' between the omitted feature(s) and the claim features.

2. The technical effect that the invention aims to achieve, and whether an omitted feature contributes thereto, is relevant for the assessment of added matter. It is relevant when considering whether the skilled person would understand from the disclosure of the application as a whole that there is a structural or functional relationship between the omitted feature and the other features of the claimed embodiment or, in other words, when considering whether there is an inextricable link with such other features or, yet differently worded, whether such omitted feature is essential to the invention.”

COURT
Court of Appeal Luxembourg

PROCEEDINGS
Action for revocation

PATENT
EP 3 831 283

ANALYTE SENSOR DEVICES,
CONNECTIONS, AND METHODS

KEYWORDS

Added matter

intermediate generalisation

relevance of the technical effect for the ass...

SUMMARY

The Court of Appeal Luxembourg ruled on an action for revocation. The patent at issue relates to analyte sensor devices, connections, and methods. According to the headnotes of the decision, added matter can occur when specific features from a disclosed embodiment are selected for a claim while other features that were presented alongside them are omitted, a situation referred to as intermediate generalisation, which is generally impermissible if the omitted features have a clearly recognisable functional or structural relationship, termed an extricable link, to the features that remain in the claim. The technical effect intended by the invention and whether an omitted feature contributes to achieving that effect are relevant considerations when assessing whether the skilled person would recognise from the application's disclosure that an omitted feature has a structural or functional relationship to the claimed features, or conversely, whether that feature is essential to the invention.